



AGREED SETTLEMENT ORDER WITH STATUS DATE (DEFENDANTS WILL MOVE)

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____

County Where the Case Was Filed

Enter the case information as it appears on the Eviction Complaint.

PLAINTIFF: _____

First, Middle, Last Name

DEFENDANTS: _____

First, Middle, Last Name

☐ **Unknown Occupants**

Check the box for Unknown Occupants if it was checked on the Eviction Complaint.

Case Number

1. THIS CASE WAS IN COURT FOR (check all that apply):

☐ Trial ☐ Hearing on Motion ☐ Status ☐ Other: _____

2. PEOPLE IN COURT (check all that apply):

☐ Plaintiff ☐ Plaintiff's lawyer ☐ Defendants' lawyer

☐ Defendants: _____

Name(s) of Defendants

☐ Other: _____

3. COMPLIANCE (FOLLOW-UP) COURT DATE.

Enter the date and time the judge told you to come back to court.

This case is continued to _____ at _____ ☐ a.m. ☐ p.m.
Date (Month, Day, Year) Time

for ☐ Status - **OR** - ☐ Compliance

to see whether Defendants have moved out of the property and paid the amount listed in Section 5 (if any).

☐ **In person** at: _____
Courtroom Address, Courtroom Number

☐ **Remotely by video conference** at: _____
Video Conference Website

Log-in information: _____

Video Conference Log-in Information, Meeting ID, Password, etc.

ATTENTION DEFENDANTS: At the compliance (follow-up) court date, the parties will have an opportunity to explain to the judge whether or not this agreement has been followed.

FOR COOK COUNTY CASES IN THE EARLY RESOLUTION PROGRAM (ERP) ONLY:

The parties acknowledge that the defendant has been served with the Notice of ERP and prior to entering into this settlement agreement, the defendant confirms that:

- 1) I understand that I can speak to a free attorney about this agreement before I sign it.
- 2) I called and talked with an attorney, and now I want to sign this agreement, or I decided not to talk to an attorney, and I want to sign the agreement anyway.
- 3) I understand that an attorney may not be able to help me after I have signed the agreement.

4. MOVE OUT AGREEMENT.

List the date and time the parties agree on for Defendants to move out. Then check all the boxes that apply to your agreement.

Defendants must move out by _____ at _____ ☐ a.m. ☐ p.m.
Date (Month, Day, Year) Time

☐ Defendants agree the amount owed to the Plaintiff is \$_____. Plaintiff agrees to waive this amount owed if Defendants move out by the date and time listed above.

Defendants must also (check all that apply):

☐ return keys to Plaintiff on _____ at _____ ☐ a.m. ☐ p.m.
Date (Month, Day, Year) Time

Describe what needs to be returned and where or how the keys should be returned.

☐ notify Plaintiff that they have moved out by phone or text at: _____
Phone Number

or by email at: _____
Email Address

Fill out Section 5 **only if** the parties agree Defendants will pay money in addition to moving. Otherwise, leave blank.

5. REPAYMENT AGREEMENT.

Enter the total amount the parties agree is owed. Check **A** or **B** to show how the money will be paid back. Include any other agreed terms like method of payment, the address where payment will be sent in Section 8.

☐ Defendants will pay Plaintiff the agreed amount of \$_____ for all past due rent assessments, court costs, and other amounts due under the lease / condo declaration through the move out date.

Defendants will make payments according to the schedule below (check **A** or **B**):

☐ **A.** \$_____ ☐ monthly on the _____
Day of Month
☐ every two weeks
☐ every week

beginning on _____ and continuing until paid in full.
Date (Month, Day, Year)

- OR -

☐ **B.** The total amount on or before: _____
Date (Month, Day, Year)

6. REASONS FOR DISMISSAL OF CASE.

If Defendants have **moved out and paid** any amount owed as stated in Section 5 of this *Agreed Order*, this case will be dismissed with prejudice and Plaintiff may go into the property and change the locks. "With prejudice" means the case is over and the claims cannot be brought back to court.

If Defendants have **moved out** but Plaintiff proves that Defendants **have not paid the full amount** listed in Section 5, the claim for possession will be dismissed with prejudice.

- Any of Defendant's personal property left behind after the move-out date will be considered abandoned and can be disposed of by the Plaintiff without further notice.

7. VIOLATION OF AGREED ORDER.

In A, if you check the second box, write in the number of days you agree on.

In B, the amount does not have to be the same as what is in Section 5.

If **Plaintiff proves that Defendants violated the terms** of this *Agreed Order*, the court will enter (check all that apply):

- A. ☐ an *Eviction Order* if Defendants are still in the property. The *Eviction Order* can be enforced (choose one):
☐ immediately (The sheriff can evict Defendants right away when the *Eviction Order* is entered.)

- OR -

- ☐ only after _____ days.

Number

(The sheriff must wait that number of days after the *Eviction Order* is entered to evict Defendants.)

- B. ☐ A *Judgment for Money Only in Eviction Case* will be entered for (check all that apply):

- ☐ the agreed amount of \$ _____ minus any payments made.

Amount

- ☐ all rent/assessments due that Plaintiff proves are still owing.

- ☐ court costs.

against the following Defendants:

8. ADDITIONAL AGREED TERMS (if applicable):

9. REMOVING THE EVICTION COURT FILE FROM PUBLIC RECORD.

Check the box if both parties have agreed to ask the court to remove the eviction court file from the public record.

- ☐ The **parties agree to ask the judge to remove the eviction court file from the public record**. The parties understand that the judge will decide this.

- The parties also agree that **either party may reject the settlement** if the judge decides the file will not be removed from the public record.
- If either party rejects the settlement, they can go to trial or try to negotiate a new agreement.



Do not complete Sections 10 or 11. The judge will complete these Sections.

10. THE COURT FINDS:

A. This eviction is foreclosure related. Sealing is mandatory:

☐ Yes ☐ No

- OR -

B. The factors for discretionary sealing are met. This is not a finding that Plaintiff violated Illinois Supreme Court Rule [137](#):

☐ Yes ☐ No

C. Additional Findings:

11. IT IS ORDERED:

☐ The request to remove the file from the public record is **GRANTED**.

☐ The clerk shall ☐ seal ☐ impound this file upon entry of this *Agreed Order*.

☐ A separate order sealing or impounding this file will be entered.

☐ The request to remove the file from the public record is **DENIED**.

☐ The case is set for status hearing.

☐ The case is set for trial.

Next Court Date (if any): _____ at _____ ☐ a.m. ☐ p.m. in courtroom _____
Date Time Courtroom #

All parties (or their lawyer) who agree to this Order should sign it.

Signed and agreed to,

Plaintiff (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

Defendant (or lawyer)

ENTERED:

Judge

Date (Month, Day, Year)

Enter the name and contact information of the person completing this Order:

Name

Address

Email

Telephone

Attorney Number (if any)